

***Distinction drawn by Sir W. Grant.** — The distinction we are considering has been put in a very clear light by Sir W. Grant. "I know of no difference," he said, "between an executory trust in marriage articles and in a will, except that the object and purpose of the former furnish an indication of intention which must be wanting in the latter. Where the object is to make a provision by the settlement for the issue of a marriage, it is not to be presumed that the parties meant to put it in the power of the father to defeat that purpose, and appropriate the estate to himself. If, therefore, the *agreement* be to limit an estate for life, with remainder to the heirs of the body, the Court decrees a strict settlement in conformity to the presumable intention. But if a *will* directs a limitation for life, with remainder to the heirs of the body, the Court has no such ground for decreeing a strict settlement" (a).

7. "**Heirs of the body**" in articles construed first and other sons. — To apply the foregoing distinction to the cases that have occurred: if in *marriage articles* the real estate of the husband or wife be limited to the *heirs of the body*, or the *issue* (b) of the contracting parties, or either of them, or to the heirs of the body, or issue and their heirs (c), so that heirs of the body, or issue, if taken in their ordinary legal sense, would enable one or other of the parents to defeat the provision intended for the children, these words will then be construed in equity to mean first and other sons; and the settlement will be made upon them successively in tail, as purchasers (d).

Distinction where the settlement was after the marriage, and where before it. — If the settlement has been already made,

(a) *Blackburn v. Stables*, 2 V. & B. 369; and see *Maguire v. Scully*, 2 Hog. 113; *Rochford v. Fitzmaurice*, 1 Conn. & Laws. 173; 2 Drur. & War. 18; 4 Ir. Eq. Rep. 375; *Sackville-West v. Viscount Holmesdale*, 4 L. R. H. L. 543; *Scarisbrick v. Lord Skelmersdale*, 4 Y. & C. 117.

(b) *Dod v. Cod*, Amb. 274; *Grier v. Grier*, 5 L. R. H. L. 688.

(c) *Phillips v. James*, 2 Drew. & Sm. 404.

(d) *Handick v. Wilkes*, 1 Eq. Ca. Ab. 393; *Trevor v. Trevor*, 1 P. W. 622; *Jones v. Langton*, 1 Eq. Ca. Ab. 392; *Cusack v. Cusack*, 5 B. P. C. 116; *Griffith v. Buckle*, 2 Vern. 13; *Stoner v. Curwen*, 5 Sim. 269, *per* Sir L. Shadwell; *Davies v. Davies*, 4 Beav. 54; *Rochford v. Fitzmaurice*, *ubi supra*.